
MUTUAL NON-DISCLOSURE AGREEMENT

General Commercial — Technology Evaluation

BETWEEN

Luminos Health Technologies Ltd. Kings Cross, London EC1 4NP | Company No. 08834421 | England & Wales

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation

Reference: **LHT-NDA-2024-0041**

Date: **12 September 2024**

Governing Law: **England and Wales**

Confidentiality Level: **STRICTLY CONFIDENTIAL**

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1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, the following terms shall have the meanings set out below unless the context otherwise requires:

"Affiliate" means, in relation to a party, any entity that, directly or indirectly, controls, is controlled by, or is under common control with that party, where "control" means the ownership of more than fifty percent (50%) of the voting shares or equivalent ownership interest, or the power to direct or cause the direction of the management and policies of such entity;

"Agreement" means this Mutual Non-Disclosure Agreement together with any schedules or annexures attached hereto and incorporated herein by reference, as the same may be amended from time to time in accordance with Section 18;

"Authorised Representative" means, in relation to each party, a director, officer, or senior employee of that party who has been duly authorised to execute legal agreements on that party's behalf;

"Business Day" means any day other than a Saturday, Sunday, or public or bank holiday in England and Wales;

"Confidential Information" has the meaning given to it in Section 2 of this Agreement;

"Disclosing Party" means the party disclosing Confidential Information to the other party pursuant to this Agreement;

"Effective Date" means 12 September 2024, being the date of execution of this Agreement by the last party to sign;

"Intellectual Property Rights" means all patents, utility models, rights to inventions, copyright and neighbouring and related rights, moral rights, trade marks, business names and domain names, rights in get-up and trade dress, goodwill and the right to sue for passing off, rights in designs, rights in computer software, database rights, rights to use and protect the confidentiality of confidential information (including know-how and trade secrets), and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted renewals or extensions of such rights, and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world;

"Need to Know Persons" means those employees, officers, directors, professional advisers, and contractors of the Receiving Party who require access to Confidential Information solely for the Purpose and who are subject to binding confidentiality obligations no less protective than those set out in this Agreement;

"Purpose" means the evaluation of a potential commercial collaboration between the parties in the field of artificial intelligence-powered clinical decision support systems, including the parties' respective technologies, capabilities, and commercial arrangements relevant thereto;

"Receiving Party" means the party receiving Confidential Information from the Disclosing Party pursuant to this Agreement;

"Term" has the meaning given to it in Section 5.1;

1.2 In this Agreement, unless the context otherwise requires: (a) references to a person include any individual, company, corporation, partnership, joint venture, association, trust, or other entity; (b) the singular includes the plural and vice versa; (c) any reference to a statute, statutory provision, or subordinate legislation is a reference to that statute, statutory provision, or subordinate legislation as in force at the date of this Agreement and as amended, extended, re-enacted, or consolidated from time to time; (d) headings are for ease of reference only and shall not affect the interpretation of this Agreement;

and (e) "including" and "include" shall be construed as "including without limitation" and "include without limitation" respectively.

2. CONFIDENTIAL INFORMATION

2.1 For the purposes of this Agreement, "**Confidential Information**" means any and all information and materials disclosed by the Disclosing Party to the Receiving Party in connection with the Purpose, whether disclosed before or after the Effective Date, in whatever form or medium (including written, oral, electronic, visual, or tangible form), that: (a) is designated or marked as "Confidential," "Proprietary," "Restricted," or with a similar legend at the time of disclosure; or (b) if disclosed orally or in a non-documentary form, is identified as confidential at the time of disclosure and is confirmed in a written summary delivered by the Disclosing Party to the Receiving Party within ten (10) Business Days of such disclosure, which summary shall be deemed to form part of the Confidential Information for all purposes.

2.2 Without limiting the generality of Section 2.1, Confidential Information includes, to the extent so designated or confirmed: technical data, formulae, algorithms, source code, object code, software architecture, system designs, schematics, drawings, engineering specifications, test data and results, clinical data, research results, financial information (including budgets, forecasts, projections, costs, and pricing), business plans, marketing strategies, product roadmaps, customer and supplier lists, personnel information, contract terms, trade secrets, know-how, and any analyses, compilations, studies, reports, or other materials prepared by the Receiving Party or its Need to Know Persons that contain, reflect, or are derived from such information.

2.3 **Exclusions.** Notwithstanding the foregoing, Confidential Information shall not include information that the Receiving Party can demonstrate by contemporaneous written evidence: (a) was or becomes publicly available or generally known in the relevant industry other than as a result of any breach of this Agreement or any other obligation of confidentiality owed to the Disclosing Party; (b) was rightfully known to or in the possession of the Receiving Party prior to disclosure by the Disclosing Party, free from any obligation of confidentiality; (c) was independently developed by the Receiving Party without reference to, use of, or access to the Disclosing Party's Confidential Information, and was so developed by personnel who had no access to such Confidential Information; or (d) was received by the Receiving Party from a third party who was lawfully entitled to disclose the same without restriction, and such disclosure did not violate any obligation of confidentiality owed to the Disclosing Party. For the avoidance of doubt, the combination of elements of Confidential Information shall not fall within any of the foregoing exclusions merely because individual elements are in the public domain or otherwise known, if the combination itself is not publicly known.

3. OBLIGATIONS OF CONFIDENTIALITY AND NON-USE

3.1 **Duty of Confidentiality.** The Receiving Party shall: (a) hold all Confidential Information received from the Disclosing Party in strict confidence; (b) protect and safeguard the Confidential Information using the same degree of care, diligence, and security measures as it applies to its own confidential information of a similar nature and sensitivity, provided that such care shall in all cases be no less than a reasonable standard of care; (c) not disclose, divulge, communicate, or make available any Confidential Information to any person other than Need to Know Persons without the prior written consent of the Disclosing Party; and (d) ensure that all Need to Know Persons are made aware of the confidential nature of the Confidential Information and are bound by written confidentiality obligations that are at least as protective as those set out in this Agreement before receiving any Confidential Information.

3.2 **Restriction on Use.** The Receiving Party shall use the Confidential Information solely and exclusively for the Purpose. The Receiving Party shall not use or exploit the Confidential Information, directly or

indirectly, for any commercial, competitive, or other purpose outside the scope of the Purpose without the prior written consent of the Disclosing Party. In particular, and without limiting the generality of the foregoing, the Receiving Party shall not use the Confidential Information to develop, design, manufacture, or market any product or service that competes with, or is a substitute for, any current or future product or service of the Disclosing Party.

3.3 Access Controls. The Receiving Party shall: (a) maintain a record of the identity of each Need to Know Person to whom Confidential Information is disclosed; (b) upon reasonable request by the Disclosing Party, promptly provide that record to the Disclosing Party; (c) implement and maintain reasonable physical, technical, and organisational security measures to prevent unauthorised access to, use of, or disclosure of the Confidential Information, including (where appropriate) access controls, encryption, and network security measures; and (d) promptly notify the Disclosing Party upon becoming aware of any actual or suspected unauthorised disclosure, loss, or use of the Confidential Information.

3.4 Mutual Obligations. The parties acknowledge and agree that the obligations of confidentiality and non-use set out in this Section 3 are mutual and apply equally to each party in its respective capacity as Receiving Party. All rights, obligations, and responsibilities set out in this Section 3 are symmetrical and identical as between the parties.

4. PERMITTED DISCLOSURES

4.1 Compelled Disclosure. The Receiving Party may disclose Confidential Information to the extent strictly required by applicable law, regulation, court order, or order of any regulatory authority of competent jurisdiction, provided that the Receiving Party: (a) gives the Disclosing Party the maximum practicable prior written notice of such requirement (and in any event not less than five (5) Business Days' notice where legally permissible) to allow the Disclosing Party to seek a protective order, injunction, or other appropriate relief; (b) cooperates reasonably and at no cost to the Receiving Party with the Disclosing Party in seeking such protective order or other relief; (c) discloses only that portion of the Confidential Information that is strictly and legally required to be disclosed; and (d) requests, and uses reasonable endeavours to obtain, confidential treatment for such disclosed information.

4.2 Professional Advisers. Nothing in this Agreement shall prevent the Receiving Party from disclosing Confidential Information to its legal or professional advisers who are bound by professional obligations of confidentiality at least as protective as those set out in this Agreement and who require access solely for the purpose of advising on matters relating to this Agreement or the Purpose.

5. TERM, TERMINATION, AND SURVIVAL

5.1 Term. This Agreement shall commence on the Effective Date and shall continue in full force and effect for a period of three (3) years (the "**Term**"), unless earlier terminated by either party on not less than thirty (30) days' prior written notice to the other party, or upon the mutual written agreement of the parties.

5.2 Effect of Termination. Termination or expiry of this Agreement shall not affect any rights or obligations that have accrued prior to the date of termination or expiry.

5.3 Survival of Confidentiality Obligations. The obligations of confidentiality, non-use, and return or destruction of Confidential Information set out in Sections 3, 4, 6, and 7 of this Agreement shall survive the termination or expiry of this Agreement for the duration of the Term only, and shall cease upon the natural expiry of the Term. Upon expiry of the Term, the obligations of confidentiality shall cease with respect to information that does not independently qualify as a trade secret under applicable law.

6. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

6.1 Upon the written request of the Disclosing Party at any time, or upon the termination or expiry of this Agreement, the Receiving Party shall, at the election of the Disclosing Party, within ten (10) Business Days: (a) return to the Disclosing Party all Confidential Information (and all copies, extracts, summaries, analyses, and notes thereof) in its possession or control, whether in tangible or electronic form; or (b) permanently destroy all such Confidential Information (and all copies, extracts, summaries, analyses, and notes thereof) and certify such destruction in writing, signed by an Authorised Representative of the Receiving Party, delivered to the Disclosing Party within seven (7) Business Days of such destruction.

6.2 Notwithstanding Section 6.1, the Receiving Party may retain: (a) such copies of Confidential Information as are required by applicable law or regulation to be retained, provided that such retained information continues to be held subject to the confidentiality obligations set out in this Agreement for so long as it is retained; and (b) copies of Confidential Information contained in electronic backup systems automatically created in the ordinary course of business, provided that such information is not accessed, used, or extracted from such backup systems and is permanently deleted in the normal course of the Receiving Party's backup deletion procedures.

6.3 For the avoidance of doubt, the obligations of this Agreement shall continue to apply to any Confidential Information retained by the Receiving Party pursuant to Section 6.2 for so long as such information is retained.

7. INTELLECTUAL PROPERTY AND NO LICENCE

7.1 **Ownership.** Each party acknowledges and agrees that all Confidential Information disclosed by a party hereunder is and shall remain the exclusive property of the Disclosing Party (or its licensors, as applicable). Nothing in this Agreement shall be construed to transfer or assign any Intellectual Property Rights in or to any Confidential Information from the Disclosing Party to the Receiving Party.

7.2 **No Licence.** Nothing in this Agreement shall be construed to grant the Receiving Party — whether by implication, estoppel, acquiescence, or otherwise — any licence, right, or interest of any kind in or to any Confidential Information, or in or to any Intellectual Property Rights of the Disclosing Party, other than the strictly limited right to use the Confidential Information for the Purpose in accordance with the terms of this Agreement.

7.3 **Residuals.** Nothing in this Agreement shall restrict the Receiving Party's ability to use Residual Information (being unaided human memory of general knowledge, skills, and experience that a Need to Know Person retains following access to Confidential Information, but expressly excluding specific technical formulae, proprietary data sets, source code, or financial projections), provided that such use does not breach the Receiving Party's obligations under this Agreement and does not infringe any Intellectual Property Rights of the Disclosing Party.

7.4 **No Warranty.** The Disclosing Party makes no representation or warranty, express or implied, as to the accuracy, completeness, or fitness for purpose of any Confidential Information. The Disclosing Party shall not be liable for any loss or damage arising from the Receiving Party's reliance on or use of any Confidential Information.

8. REMEDIES

8.1 **Acknowledgement of Irreparable Harm.** Each party acknowledges and agrees that: (a) the Confidential Information constitutes a valuable commercial and proprietary asset of the Disclosing Party; (b) any breach or threatened breach of this Agreement by the Receiving Party would cause the Disclosing Party irreparable injury and harm for which monetary damages alone would be an inadequate remedy; and (c) in addition to any other rights or remedies available at law or in equity, the Disclosing Party shall be

entitled to seek injunctive relief, specific performance, and other equitable relief from any court of competent jurisdiction to prevent or remedy any breach or threatened breach of this Agreement, without the necessity of proving actual damages, without posting any bond or other security, and without prejudice to any other rights or remedies available to the Disclosing Party.

8.2 Limitation of Liability. Save in respect of liability for breach of the obligations of confidentiality and non-use under Section 3, and save in respect of any liability arising from fraud, wilful misconduct, or death or personal injury caused by negligence, neither party shall be liable to the other for any indirect, special, incidental, consequential, or punitive damages arising out of or in connection with this Agreement, even if such party has been advised of the possibility of such damages.

9. MUTUAL NDA — NO OBLIGATION TO PROCEED

9.1 The parties acknowledge that this Agreement does not: (a) obligate either party to enter into any further agreement with the other party; (b) grant either party any exclusivity with respect to the Purpose or any related transaction; (c) constitute an offer to sell or purchase any asset, business, or security; or (d) create any obligation on either party to disclose any particular information to the other party.

9.2 Either party may, at any time and without liability, decide not to proceed with the Purpose or any related transaction and may decline to disclose any particular information to the other party.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Luminos Health Technologies Ltd.:

Kings Cross, London EC1 4NP, United Kingdom

Attention: General Counsel, Luminos Health Technologies Ltd.

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **England and Wales**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **England and Wales** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of England and Wales on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of
Luminos Health Technologies Ltd.

Signature: _____

Print Name: [NAME]

Title: Chief Executive Officer

Date: _____

Witness Name: _____

Witness Sig.: _____

SIGNED for and on behalf of
NovaTech Solutions Inc.

Signature: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____